

not change the character of the wages as community property. The Court acknowledges that the judgment against Christine Eatmon was discharged in bankruptcy. However this does not exempt her wages from garnishment pursuant to 11 U.S. Code § 524(b)(2).

The Motion is **GRANTED**. An earnings assignment order shall be issued against the Judgment Debtor's spouse, Christine Eatmon. Judgment Creditors have submitted a proposed order that will be executed by the Court.

IN RE: MARTIN

CASE NUMBER: 26CV-0210536

Tentative Ruling on Petition for Change of Name: Petitioner Tracy Lynn Martin seeks to change her name to TabithaKaterina Tracy-Lynn Martin. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

IN RE: MONDRAGON

CASE NUMBER: 26CV-0210282

Tentative Ruling on Petition for Change of Name: Petitioner Marissa Anne Mondragón-Mullens seeks to change her name to Marissa Aurora-Olivia Mondragón. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: PANDIT

CASE NUMBER: 26CV-0210214

Tentative Ruling on Petition for Change of Name: Petitioner Arianna Carin Pandit seeks to change her name to Arianna Carin Lemont. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

PONCIANO, ET AL. VS. MARX, ET AL.

CASE NUMBER: CVCV20-0194371

Tentative Ruling on Motion for Attorney's Fees: Plaintiffs/Cross-Defendants Dan Ponciano, Jean Ponciano, and Ashley Spurgeon request attorney's fees in the amount of \$281,845. The motion was originally noticed for hearing on June 29, 2026, however, the hearing was continued to July 20, 2026 by stipulation of the parties. The motion is opposed by Defendants/Cross-Complainants Charles H. Marx and Marlene Marx, individually and on behalf of the Marx Family 2012 Trust, and Cory Herzberg. As a preliminary matter, the motion was timely filed. CRC 3.1702(b)(1).

"Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." CCP § 1021. Allowable costs include "Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." CCP § 1033.5(a)(10).

(a) In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

Where a contract provides for attorney's fees, as set forth above, that provision shall be construed

as applying to the entire contract, unless each party was represented by counsel in the negotiation and execution of the contract, and the fact of that representation is specified in the contract.

Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit.

Civ. Code § 1717(a)

The contract in this matter is a Stipulation for Entry of Judgment and Judgment on Stipulation filed in Shasta County Case No. 105365 that was recorded in Shasta County on April 17, 1996. Paragraph 14 of the Judgment reads:

If any civil action or proceeding is brought by any party to this agreement (or their successors or assigns) to enforce or interpret the terms of this Stipulation and Judgment, or the provisions thereof, or the future with respect to any action between the parties concerning the rights and obligation of the parties, or the water rights and irrigation easements, then the prevailing party shall be entitled to recover reasonable attorney's fees, as well as costs incurred in connection with any such action or proceeding.

Stipulation for Entry of Judgment in Case No. 105365, ¶ 14.

Plaintiffs and Defendants are bound by the Judgment as successors. The Complaint includes a copy of the Judgment as Exhibit 3. The Cross-Complaint contains reference to the Judgment in Prayer for Relief, Item. b. Prayer for Relief, Item f. is "For cost of this action and reasonable attorneys' fees as provided for in the ROTH BARNESON v. BOYD 1996 Stipulated Judgment (see Shasta County Superior Court, Case Number 105365)." This leaves no question that Defendants/Cross-Complainants are bound by the Judgment as Defendants/Cross-Complainants themselves sought attorney's fees under ¶ 14 of the Judgment. The case as a whole concerned the rights and obligations of the parties. The entire case, including the trespass claim, falls under ¶ 14.

In order to recover attorney fees under ¶ 14, Plaintiffs must be the prevailing party.

"Prevailing party" includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

CCP § 1032(a)(4).

Here, Plaintiffs ultimately prevailed on their trespass claim, and the jury awarded a monetary judgment. Defendants/Cross-Complainants recovered no relief on the Cross-Complaint. Plaintiffs are the prevailing party and therefore entitled to reasonable attorney fees. In the Opposition, Defendants requested a reduction based on apportionment between successful and unsuccessful claims. A trial court has broad discretion when determining whether to apportion attorney's fees between successful and unsuccessful claims. *Doe v. Westmont College* (2021) 60 Cal. App. 5th 753, 767. Attorneys' fees need not be apportioned where the claims are so intertwined as to make it impracticable, if not impossible to separate the attorney's time. *Maxim Crane Works L.P. v. Tilbury Constructors* (2012) 208 Cal. App. 4th 286, 298. The claims here, both successful and unsuccessful, arose from the same set of facts and circumstances. The Court finds that all the claims were "intertwined" and that an apportionment would be inappropriate.

Plaintiffs request a total of \$281,845 which is comprised of 857.8 combined hours between Jeffery Swanson, Mark Norcross and Kat Zhao. The requested rates range from \$300 to \$350 per hour based on the attorney, work being performed, and where in the nearly seven-year timespan of the case the work was performed. The Court